

ASCII MASTER FLOW – PANEL 1/9: Federalism: constitutional autonomy within an indestructible Union

FEDERAL SYSTEM

- +-- Constitution divides power between Union and State governments
- +-- each level operates directly on people within assigned fields
- +-- independent judiciary interprets the division

INDIA: ARTICLE 1 -> UNION OF STATES

- +-- federation is not founded on a secession-permitting compact
- +-- Union is indestructible; State areas, boundaries and names are alterable by law
- +-- holding-together design creates a stronger Union and asymmetric arrangements

CLASSIC FEDERAL FEATURES

- +-- dual polity
- +-- written and supreme Constitution
- +-- constitutional division of powers
- +-- rigidity for federal provisions
- +-- independent judiciary
- +-- bicameral federal representation

TRAP: alterable States remain constitutional governments, not Union departments.

ASCII MASTER FLOW – PANEL 2/9: Why India has a Union bias without becoming unitary

CENTRALISING FEATURES

- +-- Union List breadth and residuary power with Parliament
- +-- Parliament's exceptional access to State subjects
- +-- emergency provisions and Article 356
- +-- Governors appointed by the Union
- +-- All-India Services
- +-- integrated judiciary, election machinery and audit architecture
- +-- single citizenship and flexible State reorganisation

FEDERAL CHECKS

- +-- State List autonomy and elected State governments
- +-- Rajya Sabha and State ratification for entrenched changes
- +-- independent judicial review
- +-- Finance Commission / GST Council / intergovernmental bargaining
- +-- federalism protected as Basic Structure

VERDICT

Union strength supports integrity and coordination; unchecked use can become central domination.

ASCII MASTER FLOW – PANEL 3/9: Legislative distribution: Lists, hierarchy and residuary power

ARTICLE 246 -> Union / Concurrent / State hierarchy

- +-- List I: Parliament exclusive, standard examination count 100
- +-- List II: States exclusive subject to exceptions, standard count 61
- +-- List III: both levels, standard count 52

ARTICLE 246A -> special GST competence

ARTICLE 248 + UNION LIST ENTRY 97 -> residuary power with Parliament

ARTICLE 254 -> Concurrent repugnancy; parliamentary law ordinarily prevails

- +-- reserved State law with Presidential assent may operate in that State
- +-- Parliament may later override it

DOCTRINES

pith and substance -> identify true nature

territorial nexus -> require real connection

harmonious construction -> reconcile broad entries

repugnancy -> final rule for irreconcilable Concurrent conflict

TRAP: Article 254 is not a universal Union-State conflict clause.

ASCII MASTER FLOW – PANEL 4/9: When Parliament enters the State List

PARLIAMENT ON STATE SUBJECTS

- +-- Article 249: Rajya Sabha national-interest resolution
- +-- Article 250: during National Emergency
- +-- Article 252: two or more States request legislation
 - | +-- other States may adopt later
 - | +-- Parliament alone amends or repeals that law
- +-- Article 253: treaty / international agreement implementation
- +-- Article 356: during President's Rule for the State
- +-- Article 246(4): territories not included in a State

CONTROL QUESTIONS

What is the trigger? Who initiates? How long does authority last? Who can amend or repeal?

CLOSE OPTIONS

249 begins in Rajya Sabha; 252 begins with State resolutions; 253 can reach State subjects.
Exceptional Union access does not permanently erase the State List.

ASCII MASTER FLOW – PANEL 5/9: Federalism as Basic Structure: autonomy with constitutional integration

KESAVANANDA BHARATI (1973)

- +-- federal character enters the basic-structure constellation

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S.R. BOMMAI (1994)

- +-- federalism and secularism constrain Article 356 abuse

- +-- majority ordinarily tested on the legislative floor

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STATE OF RAJASTHAN V. UNION OF INDIA (1977) / RELATED DOCTRINE

- +-- strong Union does not convert States into administrative agents

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MOHIT MINERALS (2022)

- +-- GST Council recommendations are not legally binding

- +-- cooperative decision-making coexists with legislative autonomy

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CURRENT APPLICATION

- +-- Governor, CBI, tax and representation conflicts remain constitutional disputes

FORMULA: autonomy + coordination + judicially enforceable constitutional boundaries.

ASCII MASTER FLOW – PANEL 6/9: How federalism works: cooperation, competition, bargaining and asymmetry

MODE	MECHANISM	BENEFIT / RISK
cooperative	GST Council, councils, schemes	coordination / Union leverage
competitive	investment and policy innovation	learning / unequal capacity
bargaining	coalition and fiscal negotiation	accommodation / opacity
confrontational	courts, consent withdrawal, veto	rights assertion / paralysis

SHARED-RULE INSTITUTIONS

Rajya Sabha | Inter-State Council | Zonal Councils | GST Council | Finance Commission
courts | All-India Services | inter-State dispute mechanisms

ASYMMETRY

special constitutional arrangements respond to history, geography and tribal autonomy
asymmetry != inequality without reason; it needs constitutional source and purpose

LOCAL GOVERNMENT

73rd / 74th Amendments deepen federal participation
but local bodies are not a co-equal third sovereign tier under the Constitution.

ASCII MASTER FLOW – PANEL 7/9: Fiscal federalism: revenue capacity, equalisation and pooled sovereignty

EXPENDITURE RESPONSIBILITIES

States carry major delivery duties in health, police, agriculture and local services

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REVENUE ARCHITECTURE

+-- assigned taxes and shared Union taxes

+-- Finance Commission devolution and grants

+-- GST with pooled Union-State tax sovereignty

+-- borrowing rules, schemes, cesses and surcharges

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CURRENT CONTROL

16th Finance Commission award for 2026-31 retains 41% vertical share of divisible pool

horizontal distribution balances equity, population, demographic performance,

area, forest / ecology and contribution-related considerations

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FEDERAL TENSION

vertical imbalance + conditional schemes + cesses outside divisible pool + GST rate autonomy

VERDICT: autonomy requires predictable finance, not merely legislative competence.

ASCII MASTER FLOW – PANEL 8/9: Representation, Governors, CBI and current federal friction

REPRESENTATIONAL FEDERALISM

- +-- Rajya Sabha gives State voice but unequal population-based representation
- +-- Lok Sabha delimitation can redistribute federal political weight
- +-- defeated 131st Amendment Bill's 850 ceiling is not current law
- +-- census conduct dates are not publication or delimitation dates

GOVERNOR ASSENT: 20 NOVEMBER 2025 ADVISORY CONTROL

- +-- no judicially fixed timelines
- +-- no deemed assent
- +-- prolonged unexplained inaction may attract a direction to act
- +-- court cannot dictate the constitutional choice

CBI CONSENT

- +-- DSPE section 6 ordinarily protects State territorial police autonomy
- +-- constitutional courts may order investigation without State consent
- +-- 2024 West Bengal maintainability ruling did not decide every merits issue

REFORM: consultation, neutral offices, reasons, transparent finance and timely forums.

ASCII MASTER FLOW – PANEL 9/9: Prelims traps, verified PYQs and the Mains answer spine

PRELIMS CONTROL

Union of States != secession compact	residuary power -> Parliament
standard List counts -> 100 / 61 / 52	Article 254 -> Concurrent conflict
Article 249 -> Rajya Sabha	Article 252 -> State-request route
GST Council -> recommendatory	local bodies -> not co-equal sovereign tier
S.R. Bommai (1994) -> federal Basic Structure	strong Centre != unitary Constitution

VERIFIED PYQS

2020 GS-II Q3 cooperation / competition / confrontation
2021 GS-II Q11 CBI consent; 2022 GS-II Q13 party centralisation / autonomy
2021 Prelims Q86 federal feature; 2023 Prelims Q32 prisons
Objective answers remain labelled inferred where official keys are absent.

MAINS SPINE

- 1 define federalism and holding-together Union
- 2 map federal and centralising features
- 3 explain legislative, administrative and fiscal distribution
- 4 use institutions, cases, asymmetry and current friction
- 5 diagnose imbalance and conclude: capable Union + autonomous, consulted States.